

SENATE No. 544

The Commonwealth of Massachusetts

PRESENTED BY:

William N. Brownsberger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting the mistreatment of birds.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>William N. Brownsberger</i>	<i>Suffolk and Middlesex</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/5/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>2/5/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/5/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>3/22/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/22/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>5/6/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>10/15/2025</i>

SENATE No. 544

By Mr. Brownsberger, a petition (accompanied by bill, Senate, No. 544) of William N. Brownsberger, Joanne M. Comerford, Dylan A. Fernandes and Jason M. Lewis for legislation to prohibit the mistreatment of birds. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting the mistreatment of birds.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 118 of chapter 94 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting before the definition of “broker” the following
3 definition:- Bird, any winged vertebrate, such as a duck or goose.

4 SECTION 2. Section 118 of chapter 94 is further amended by inserting after the
5 definition of “department” the following definition:- Force feeding, a process that causes a bird
6 to consume more food than a typical bird of the same species would consume voluntarily. These
7 methods include but are not limited to delivering feed through a tube or other device inserted into
8 the bird’s esophagus.

9 SECTION 3. Section 118 of chapter 94 is further amended by striking the definition of
10 “Poultry” and replacing it with the following:- any domesticated bird, whether live or dead,
11 including a duck or goose.

12 SECTION 4. Section 127 of chapter 94, as so appearing, is hereby amended by inserting
13 after clause 3 of Subsection (a) the following clause:- (4) force feed a bird for the purpose of
14 enlarging the bird's liver beyond the normal size or hire another person to do so.

15 SECTION 5. Section 127 of said chapter 94, as so appearing, is further amended by
16 inserting after clause 3 of Subsection (b) the following clause:- (4) any products that are the
17 result of force feeding a bird for the purpose of enlarging the bird's liver beyond the normal size.